

STATE OF NEW YORK

9346--B

IN SENATE

March 3, 2026

Introduced by Sens. PARKER, JACKSON, SEPULVEDA -- read twice and ordered printed, and when printed to be committed to the Committee on Housing, Construction and Community Development -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the real property law, in relation to enacting the "housing transparency act"

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "housing transparency act".

3 § 2. Legislative findings. The legislature finds and declares that:

4 1. New York state is experiencing significant housing challenges,
5 including limited housing supply, inconsistent reporting of rental unit
6 occupancy status, and a lack of access to information regarding building
7 code compliance and habitability standards;

8 2. While existing state and local laws require compliance with build-
9 ing, fire, and housing codes, there is no consistent statewide mechanism
10 for reporting the occupancy or vacancy status of rental units, nor a
11 centralized system to provide public transparency regarding compliance
12 certification prior to and following tenant occupancy;

13 3. The absence of consistent reporting and transparency impedes accu-
14 rate housing supply data, complicates enforcement of habitability stand-
15 ards, and limits tenants' ability to make informed decisions;

16 4. The improvement of transparency in rental housing reporting, while
17 respecting local enforcement authority and protecting personal privacy,
18 serves a legitimate public purpose by enhancing housing stability,
19 promoting safe, habitable living conditions, and supporting data-in-
20 formed public policy decision making;

21 5. Nothing in this act shall be construed to supersede or preempt
22 local building, fire, or housing codes, but rather to supplement exist-
23 ing enforcement mechanisms through standardized reporting and adminis-
24 trative coordination;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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6. The legislature recognizes the importance of small property owners in maintaining affordable housing and intends to implement this act to minimize undue administrative burden; and

7. Reliable and accessible housing data is necessary to ensure the integrity of rental markets, prevent prolonged vacancy of habitable units, and promote public confidence in housing administration.

§ 3. The real property law is amended by adding a new article 7-B to read as follows:

ARTICLE 7-B

HOUSING TRANSPARENCY ACT

Section 239-m. Definitions.

239-n. Establishment of rental unit compliance registry.

239-o. Self-certification and turnover certification.

239-p. Voluntary tenant occupancy reporting.

239-q. Lease term election requirements.

239-r. Enforcement and penalties.

239-s. Privacy and data protection.

239-t. Application and report.

239-u. Exemption for nonprofit housing providers.

§ 239-m. Definitions. For the purposes of this article, the following terms shall have the following meanings:

1. "rental unit" shall mean any dwelling unit as defined in the multiple dwelling law that is leased, rented, or otherwise occupied pursuant to a rental agreement for residential purposes; provided, however, that such term shall not include:

(a) owner-occupied buildings containing one or two dwelling units;

(b) dwelling units within one- or two-family homes not held for rental as a primary business purpose;

(c) any dwelling units subject to a cooperative or condominium form of ownership, including units sublet or leased by the owner;

(d) units owned or operated by a nonprofit housing provider, as defined in this article;

(e) units receiving federal, state, or local subsidies where occupancy is contingent upon participation in supportive services, provided, however, that this exclusion shall not apply to tenant-based rental assistance programs, including but not limited to the Section 8 Housing Choice Voucher Program;

(f) emergency shelters, temporary housing accommodations, or transitional housing placements; or

(g) any housing program where occupancy is conditioned upon participation in social, medical, rehabilitative, or supportive services.

2. "covered building" shall mean any residential building containing more than two rental units;

3. "owner" shall mean any person, firm, partnership, corporation, limited liability company, or other entity holding legal title to the covered building, or any agent thereof authorized to collect rent or manage the property;

4. "occupancy status" shall mean whether a rental unit is:

(a) occupied pursuant to a lease or rental agreement;

(b) vacant and available for rent;

(c) vacant and temporarily unavailable for rent due to repairs or renovations; or

(d) otherwise not lawfully habitable pursuant to a government order;

5. "pre-occupancy compliance certification" shall mean a written certification by the owner that the rental unit is in compliance with

applicable state and local building, fire, and housing maintenance codes at the time of lease commencement;

6. "turnover certification" shall mean a written certification submitted by the owner following the termination of a tenancy, indicating the condition of the rental unit and any outstanding violations;

7. "division" shall mean the division of housing and community renewal;

8. "small property owner" shall mean:

(a) in the upstate region, an owner of a building containing no more than three rental units, including single-family rental properties, and owners of one- to three-family residential properties, whether or not owner occupied; and

(b) in the downstate region, an individual or entity owning no more than ten rental units statewide, including single-family rental properties, and owners of one- to ten-family residential properties, whether or not owner-occupied; provided, however, that such term shall not include:

(i) any dwelling unit subject to a cooperative or condominium form of ownership;

(ii) any entity that, directly or indirectly, through common ownership, affiliates, or controlling interest, owns or manages more than three units statewide;

(iii) any real estate investment trust, corporate landlord, or institutional investor; or

(iv) any nonprofit housing provider as defined in this article; and

9. "nonprofit housing provider" shall mean any organization exempt under section 501(c)(3) of the United States internal revenue code that owns or operates residential housing for the purpose of providing affordable, supportive, transitional, or community-based housing; provided, however, that such term shall not include any entity primarily engaged in market-rate rental activity without the provision of supportive or community-based services.

10. "downstate region" shall mean the counties of New York, Kings, Queens, Bronx, Richmond, Nassau, Westchester, Rockland, Suffolk, Dutchess, Putnam, Sullivan and Orange county.

11. "upstate region" shall mean all counties of the state not included in the downstate region.

§ 239-n. Establishment of rental unit compliance registry. 1. Within one year of the effective date of this article, the division shall establish and maintain a statewide rental unit compliance registry for covered buildings within the state.

2. Each owner of a covered building shall register annually with the division in a manner prescribed by regulation. Such registration shall include:

(a) the address of the covered building;

(b) the total number of rental units in such covered building;

(c) the occupancy status of each unit;

(d) the date of the most recent inspection conducted by a government entity;

(e) the existence of any open housing, building, or fire violations; and

(f) certification that each occupied rental unit complies with applicable habitability requirements.

3. The division shall make registry information publicly accessible through an online portal.

1 4. The division shall coordinate with local code enforcement agencies,
2 housing agencies, and existing rental housing compliance or registration
3 systems, to the extent practicable, to promote administrative efficien-
4 cy, avoid or reduce duplicative reporting requirements, and improve
5 interagency communication.

6 5. Where practicable, the division shall establish procedures for data
7 sharing, interoperability, or coordinated reporting with existing munic-
8 ipal or local housing compliance systems, including but not limited to
9 systems operated by the New York city department of housing preservation
10 and development, provided that any such coordination complies with
11 applicable privacy and data protection laws.

12 6. The division may permit owners who are subject to substantially
13 similar local registration or reporting requirements to satisfy applica-
14 ble provisions of this article through coordinated or integrated report-
15 ing mechanisms established by regulation.

16 7. The division is authorized to promulgate such rules and regulations
17 as may be necessary to implement the provisions of this article.

18 § 239-o. Self-certification and turnover certification. 1. Prior to
19 the commencement of any new tenancy in a covered building, the owner
20 shall file with the division a self-certification compliance certif-
21 ication prescribed by the division affirming that:

22 (a) the rental unit is free from hazardous violations as defined by
23 applicable state or local laws;

24 (b) all smoke detection and carbon monoxide detection devices required
25 by law are installed and functioning;

26 (c) no outstanding vacate order or condemnation order applies to the
27 unit; and

28 (d) the unit is in compliance with the warranty of habitability pursu-
29 ant to section two hundred thirty-five-b of this chapter.

30 2. Nothing in this section shall require pre-occupancy inspection or
31 approval by the division unless otherwise required by law or where the
32 division has reasonable cause to believe the certification is materially
33 false.

34 3. A copy of such certification shall be provided to the tenant at or
35 before the lease signing.

36 4. The division may require reporting regarding turnover status,
37 prolonged vacancy, occupancy changes or outstanding hazardous violations
38 as part of annual registration requirements or upon the occurrence of
39 circumstances prescribed by regulation.

40 5. The division may request additional turnover or occupancy reporting
41 where:

42 (a) a rental unit remains vacant for more than ninety days;

43 (b) there are conflicting occupancy information between owner and
44 tenant reporting;

45 (c) there are outstanding hazardous violations affecting habitability;

46 (d) a governmental entity has issued a vacate order, condemnation
47 order, or similar enforcement action; or

48 (e) the division has reasonable cause to believe reporting submitted
49 pursuant to this article is materially inaccurate or incomplete.

50 6. The division shall prioritize requests for additional reporting in
51 cases involving repeated noncompliance, prolonged vacancy, or hazardous
52 conditions affecting tenant safety.

53 7. Nothing in this section shall require an additional governmental
54 inspection where none is otherwise required by law.

1 8. Owners shall provide tenants, at or before the lease signing, with
2 notice of registry access, occupancy reporting rights, and applicable
3 privacy protections established pursuant to this article.

4 § 239-p. Voluntary tenant occupancy reporting. 1. The division shall
5 establish a secure mechanism by which tenants of covered buildings may
6 voluntarily submit information confirming:

7 (a) occupancy of a rental unit;

8 (b) the existence of a written or oral rental agreement; and

9 (c) concerns regarding noncompliance with occupancy reporting require-
10 ments.

11 2. No owner shall take adverse action against a tenant for submitting
12 information pursuant to this section. Any such action shall constitute
13 retaliation under section two hundred twenty-three-b of this chapter.

14 3. Information submitted by tenants shall not be publicly disclosed
15 and shall be used solely for administrative verification and enforcement
16 purposes.

17 4. Submission of information by a tenant shall not constitute an
18 alteration of the terms of any lease, tenancy, or lawful occupancy
19 status.

20 5. All information submitted pursuant to this section shall be made in
21 good faith and to the best of the tenants' knowledge and belief.

22 6. The division shall not take enforcement action based solely on
23 tenant-submitted information without independent verification or corrob-
24 oration from reliable sources.

25 7. Information submitted pursuant to this section shall not constitute
26 prima facie evidence in any civil or administrative proceeding.

27 8. Any person who knowingly submits materially false information with
28 the intent to mislead the division shall be subjected to a civil penalty
29 as determined by regulation.

30 9. The division shall establish procedures to identify and disregard
31 repetitive, frivolous, or bad faith submissions.

32 § 239-q. Lease term election requirements. 1. (a) For a covered build-
33 ing, an owner shall, at the commencement of a new tenancy occurring on
34 and after the effective date of this section, offer the prospective
35 tenant the option of entering into a:

36 (i) lease term of not less than six months;

37 (ii) lease term of twelve months; or

38 (iii) lease term of twenty-four months.

39 (b) Owners qualifying as small property owners under this article
40 shall be exempt from lease term election requirements.

41 2. Nothing in this section shall prohibit an owner from establishing
42 differing rental rates for differing lease durations, provided such
43 rates comply with applicable law.

44 3. This section shall not apply to:

45 (a) small property owners;

46 (b) owner-occupied buildings containing less than three units; and

47 (c) temporary housing accommodations intended for occupancy of less
48 than six months.

49 4. Nothing in this section shall prohibit rental agreements for a term
50 of thirty days or less provided such agreements comply with all applica-
51 ble state and local laws and are not used to circumvent short-term
52 rental regulations.

53 § 239-r. Enforcement and penalties. 1. The division shall have author-
54 ity to enforce the provisions of this article and may conduct audits of
55 registry submissions to ensure compliance.

1 2. (a) An owner who fails to file required registration information or
2 certifications pursuant to this article shall be subject to a civil
3 penalty not to exceed five hundred dollars per unit per year of noncom-
4 pliance.

5 (b) An owner who knowingly submits materially false information shall
6 be subject to a civil penalty not to exceed one thousand dollars per
7 unit per violation.

8 3. Prior to the imposition of any civil penalty, the division shall
9 provide written notice of noncompliance and allow the owner thirty days
10 to cure such deficiency.

11 4. No owner of a covered building shall be eligible to implement a
12 rent increase otherwise permitted by law for any rental unit that:

13 (a) has not submitted a required pre-occupancy or annual compliance
14 certification;

15 (b) has an outstanding hazardous violation as defined by applicable
16 state and local code; or

17 (c) is not properly registered in the rental unit compliance registry
18 pursuant to this article.

19 5. The division may refer cases involving repeated or willful
20 violations to the office of the attorney general for further enforcement
21 action.

22 6. No small property owner or compliant owner who demonstrates a good
23 faith effort to comply with the provisions of this article shall be
24 subjected to civil penalties for a first-time or technical violation,
25 provided such violation is cured within the notice period established by
26 the division.

27 7. Owners demonstrating continuous compliance with the provision of
28 this article for three consecutive years may qualify for expedited
29 administrative review or other incentives established by the division
30 pursuant to regulation.

31 § 239-s. Privacy and data protection. 1. The division shall not
32 disclose personally identifiable information of tenants collected pursu-
33 ant to this article.

34 2. The division shall implement reasonable administrative, technical,
35 and physical safeguards to protect confidential information.

36 3. Information collected pursuant to this article shall be solely for
37 housing administration, compliance verification, public reporting, and
38 enforcement purposes.

39 § 239-t. Application and report. 1. Downstate region. (a) Beginning
40 two years after the effective date of this article, the provisions of
41 this article shall apply to owners of covered buildings containing twen-
42 ty or more rental units in the downstate region.

43 (b) Beginning three years after the effective date of this article,
44 the provisions of this article shall apply to owners of covered build-
45 ings containing ten or more rental units in the downstate region.

46 2. Upstate region. (a) Beginning two years after the effective date of
47 this article, the provisions of this article shall apply to owners of
48 covered buildings containing twenty or more rental units in the upstate
49 region.

50 (b) Beginning three years after the effective date of this article,
51 the provisions of this article shall apply to owners of covered build-
52 ings containing between six and nineteen rental units in the upstate
53 region.

54 3. Full Implementation. Beginning four years after the effective
55 date of this article, the provisions of this article shall apply to all

1 owners of covered buildings, except small property owners and exempt
2 nonprofit housing providers.

3 4. Beginning four years after the effective date of this article, the
4 division shall issue a report to the legislature on the implementation
5 of this article including but not limited to the compliance rate and
6 administrative impact of this article.

7 § 239-u. Exemption for nonprofit housing providers. Notwithstanding
8 any provision of this article to the contrary, the requirements of this
9 article shall not apply to rental units owned and/or operated by a
10 nonprofit housing provider, as defined in this article, where such
11 rental units are used for affordable, supportive, transitional, or
12 community-based purposes.

13 § 4. Severability clause. If any clause, sentence, paragraph, subdivi-
14 sion, section or part of this act shall be adjudged by any court of
15 competent jurisdiction to be invalid, such judgment shall not affect,
16 impair, or invalidate the remainder thereof, but shall be confined in
17 its operation to the clause, sentence, paragraph, subdivision, section
18 or part thereof directly involved in the controversy in which such judg-
19 ment shall have been rendered. It is hereby declared to be the intent of
20 the legislature that this act would have been enacted even if such
21 invalid provisions had not been included herein.

22 § 5. This act shall take effect eighteen months after it shall have
23 become a law. Effective immediately, the addition, amendment and/or
24 repeal of any rule or regulation necessary for the implementation of
25 this act on its effective date are authorized to be made and completed
26 on or before such date.